



CHAPTER lxxvii.

An Act to authorise the Southend Waterworks Company to construct new works to raise additional capital and for other purposes. A.D. 1915.
[29th July 1915.]

WHEREAS the Southend Waterworks Company (in this Act called "the Company") are by the Southend Waterworks Acts 1879 to 1913 authorised to construct and maintain waterworks and to supply water within the limits in the county of Essex thereby prescribed:

And whereas by the Southend Waterworks Act 1913 the limits for the supply of water by the Company were largely extended and it is expedient for the purpose of meeting the increasing demand for water within their limits that the Company should be empowered to make and maintain the pumping stations and works and to acquire the lands in this Act respectively described:

And whereas a plan and section showing the line and situation of the works by this Act proposed to be authorised and plans of the lands which may be taken or used compulsorily under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands respectively were duly deposited with the clerk of the peace for the county of Essex and are hereinafter respectively referred to as the deposited plans section and book of reference:

And whereas the total amount of capital which the Company are by the said Acts authorised to raise is nine hundred and seventy thousand pounds and the Company are authorised to borrow sums amounting in the aggregate to two hundred and eighty thousand pounds:

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And, whereas in exercise of the powers conferred by the said Acts the Company have created and issued capital to the nominal amount of five hundred and eighty-three thousand three hundred and sixty pounds which including the premiums obtained on the sale thereof has produced six hundred and nineteen thousand eight hundred and eight pounds ten shillings and the Company have borrowed sums amounting in the aggregate to one hundred and fifty-one thousand and eighty-nine pounds fifteen shillings and the existing capital powers of the Company which have not been exercised are required for the purposes of the authorised works of the Company :

And whereas it is expedient that the Company should be authorised to raise additional capital for the purposes of this Act and the general purposes of their undertaking and to apply their funds to those purposes and that the further powers in this Act mentioned should be conferred upon the Company :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short and
collective
titles.

1. This Act may be cited as the Southend Waterworks Act 1915 and the Southend Waterworks Acts 1879 to 1913 and this Act may be cited together as the Southend Waterworks Acts 1879 to 1915.

Incorpora-
tion of gene-
ral Acts.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

(1) The Waterworks Clauses Acts 1847 and 1863 except the words “with the consent in writing of the owner or “reputed owner of any such house or of the agent “of such owner” in section 44 of the Waterworks Clauses Act 1847 :

(2) The Lands Clauses Acts :

(3) The provisions of the Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) and Part I.

(relating to cancellation and surrender of shares) A.D. 1915.
 Part II. (relating to additional capital) and Part III.
 (relating to debenture stock) of the Companies
 Clauses Act 1863 as amended by subsequent Acts.

3. In this Act unless there be something in the subject Interpretation.
 or context repugnant to such construction the several words and
 expressions to which meanings are assigned by the Acts wholly
 or partially incorporated herewith shall have the same respec-
 tive meanings and the expression "the new works" means the
 pumping stations tunnel and works authorised by this Act.

4. Subject to the provisions of this Act the Company may Power to
 in the county of Essex upon the lands shown on the deposited make new
 plans and described in the deposited book of reference and in pumping
 the line and according to the levels so far as such line and stations and
 levels are shown on the deposited plans and section make and tunnel.
 maintain the pumping stations tunnel and works hereinafter
 described together with all wells borings drifts and other works
 and conveniences connected therewith and may enter upon take
 and use such of the said lands as may be required for that
 purpose (that is to say):—

- (1) A pumping station (to be called the Hullbridge Pumping Station) in the parish of Hockley to be situate in the enclosure numbered 231 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXIX-3 (2nd edition 1897):
- (2) A pumping station (to be called the Hockley Pumping Station) in the parish of Hockley to be situate in the enclosure numbered 100 on the $\frac{1}{2500}$ Ordnance map of the said parish sheets LXX-1 and LXX-5 (2nd edition 1896):
- (3) A pumping station (to be called the South Fambridge Pumping Station) in the parish of South Fambridge to be situate in the enclosure numbered 53 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXX-2 (2nd edition 1896):
- (4) A pumping station (to be called the Canewdon Pumping Station) in the parish of Canewdon to be situate in the enclosure numbered 254 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXX-8 (2nd edition 1897):
- (5) A pumping station (to be called the Paglesham Pumping Station) in the parish of Paglesham to be situate in

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the enclosure numbered 120 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXXI-9 (2nd edition 1897):

- (6) A pumping station (to be called the Holehaven Pumping Station) in the parish of Canvey Island to be situate in the enclosure numbered 304 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXXXV-2 (2nd edition 1897):
- (7) A pumping station (to be called the Leighbeck Pumping Station) in the parish of Canvey Island to be situate in the enclosure numbered 108 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXXVII-16 (2nd edition 1897):
- (8) A tunnel in the parish of Fobbing commencing at the Vange West and terminating at the Fobbing Pumping Stations of the Company and situate upon lands forming the site of the said pumping stations and upon lands forming part of the enclosures numbered 102 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXXVI-11 (2nd edition 1897) and numbered 102 103 119 120 121 137 138 153 and 154 on the said map sheet LXXVI-12 (2nd edition 1896).

Power to
make sub-
sidiary works.

5. In addition to the foregoing works the Company may upon the lands and enclosures hereinbefore described in this Act in or upon which any of the new works are respectively situate or to be constructed make and maintain all such cuts channels catchwaters tunnels adits pipes conduits culverts drifts wells shafts bores drains sluices relief valves washouts overflows byewashes discharge pipes outfalls waste-water channels gauges filters water-towers tanks banks dams embankments walls bridges approaches engines pumps machinery buildings works telegraphs telephones and other apparatus and appliances as may be necessary or convenient in connection with or subsidiary to the new works or any of them Provided that any telegraphs telephones and other apparatus and appliances constructed laid down erected made or maintained by the Company under the powers conferred by this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Limits of
deviation.

6. In the construction of the new works the Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also

deviate vertically from the levels shown on the deposited section of the tunnel by this Act authorised to any extent provided that no less space than fifty feet shall intervene between the crown of the tunnel and the surface of the ground. A.D. 1915.

7. Subject to the provisions of this Act the new works shall for all purposes whatsoever form part of and be comprised in the undertaking of the Company. Works to form part of undertaking.

8. If the new works are not completed within fifteen years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making of the said works or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Provided that the Company may alter improve enlarge extend renew reconstruct or discontinue any of their works and plant as and when occasion may require. Period for completion of works.

9. Subject to the provisions of this Act the Company may pump collect impound take use divert and appropriate for the purposes of their undertaking all underground streams springs and waters which will or may be taken or intercepted by means of any of the new works. Power to take waters.

10. Subject to the provisions of this Act the Company may in addition to any other lands which they are authorised to acquire compulsorily enter upon take and use for the purposes of their undertaking all or any portion of the lands in the county of Essex hereinafter described and shown on the deposited plans and described in the deposited book of reference (that is to say):— Acquisition of further lands.

(1) Certain lands in the parish of Canvey Island being a strip of land running in a northerly direction from the Holehaven Pumping Station by this Act authorised and forming part of the enclosure numbered 304 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXXXV-2 (2nd edition 1897) and of the enclosures numbered 304 294 and 275 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXXVII-14 (2nd edition 1897):

(2) Certain lands in the parish of Canvey Island being the site and soil of so much of the roadway situate upon the old sea wall as extends from the site of the Leighbeck pumping station by this Act authorised

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to the point where the said roadway joins the district road 450 yards or thereabouts north of Furtherwick Farmhouse.

Power to
acquire ease-
ments in lieu
of lands.

11.—(1) The Company may in lieu of acquiring under this Act any lands for the purposes of any works connected with their undertaking where the same are intended to be constructed underground or for the purpose of a right of access over any lands acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect to the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Company have acquired easements only under the provisions of this section the Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not been passed.

(3) Provided always that nothing in this section contained shall authorise the Company to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision but this proviso shall not apply to the lands lastly described in the section of this Act whereof the marginal note is "Acquisition of further lands."

For protec-
tion of
Canvey
Island Com-
missioners.

12. In the event of the Company acquiring any of the lands lastly described in the section of this Act whereof the marginal note is "Acquisition of further lands" or of an easement or easements in or over the same (other than a right of way thereover) or constructing any works thereon the following provisions for the protection of the Canvey Island Commissioners (in this section called "the commissioners") shall unless otherwise agreed in writing apply and have effect (that is to say):—

(1) Before commencing to cut alter or otherwise interfere with the sea wall referred to in the description of

the said lands or any part thereof except for the purpose of laying consumers' communication pipes or in cases of emergency or for effecting repairs as hereinafter provided the Company shall submit to the commissioners plans and sections of any works which the Company propose to execute on or affecting the said sea wall and if within twenty-one days after the receipt of such plans and sections the commissioners shall fail to intimate in writing their disapproval thereof they shall be deemed to have approved of the same. Provided that in cases of emergency or for the purpose of effecting repairs the Company may forthwith open the ground and execute the necessary work or repair but they shall within twenty-four hours of the work being commenced give notice to the clerk to the commissioners or other person appointed by them with particulars of the circumstances:

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- (2) The Company shall not unless the commissioners shall have previously intimated to them their approval of such plans and sections commence to cut alter or otherwise interfere with the said sea wall or any part thereof until after the expiration of the said period of twenty-one days nor until all the objections of the commissioners of which they shall have given notice shall have been met or disposed of by agreement or by arbitration in manner hereinafter provided:
- (3) All works plans and sections of which are by this section required to be submitted to the commissioners shall be executed by the Company under the superintendence and to the reasonable satisfaction of the commissioners and in no case shall the level of the said sea wall be lowered:
- (4) If by reason or in consequence of the execution of any works by the Company on or affecting the said sea wall the commissioners shall be put to or shall incur expense in the repair or maintenance of the said sea wall or of any of the walls banks or works belonging to or repairable by the commissioners the amount of such expense reasonably incurred shall be repaid to the commissioners by the Company:

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(5) If any difference shall arise between the commissioners and the Company under this section such difference shall be referred to and determined by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and subject thereto the Arbitration Act 1889 shall apply to any such reference.

Persons under disability may grant easements &c.

13. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Period for compulsory purchase of lands.

14. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Power to stop up footpath.

15.—(1) The Company may in the parish of Hadleigh stop up the footpath running in a south-easterly direction across the enclosure numbered 13 on the $\frac{1}{2500}$ Ordnance map of the said parish sheet LXXVII-4 (2nd edition 1897) and lying to the south of the Oakwood Reservoir of the Company and thereupon all rights of way over the said footpath shall be extinguished but such footpath shall not be stopped up unless the Company are owners in possession of all lands on both sides thereof except so far as the owners lessees and occupiers of those lands may otherwise agree and the Company may appropriate and use for the purposes of their undertaking the site and soil of the footpath so stopped up Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

(2) Before stopping up the said footpath the Company shall to the reasonable satisfaction of the Rochford Rural District

Council alter the position of the northern boundary of the existing roadway known as Poors Lane so that the said Lane shall for its whole length along the southern boundary of the said enclosure be of a width of eighteen feet measured in a northerly direction from the centre line of such roadway as now existing The Company shall to the like satisfaction make and form a pathway four feet wide along the northern side of and within such extended roadway and also along and within a distance of not more than thirty-six feet from the western boundary of the said enclosure from Poors Lane to the public highway adjoining the northern boundary of the enclosure numbered 17 on the said Ordnance map. A.D. 1915.

16. The Company may on all or any of the lands for the time being held by them in connection with their undertaking execute for the purposes of or in connection with the said undertaking any of the works (other than wells and works for taking and intercepting water) and exercise any of the powers mentioned in or conferred by section 12 of the Waterworks Clauses Act 1847 Provided that the Company shall not under the powers of this section create or permit the creation or continuance of any nuisance on any such lands purchased or taken on lease nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or in connection with their undertaking. As to exercise of powers of section 12 of Waterworks Clauses Act 1847.

17.—(1) Any urban or rural district council the district under whose jurisdiction is in whole or in part within the limits for the supply of water by the Company may give and enter into any guarantee or contract for securing payment to the Company of such periodical or other sum or sums of money at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Company for the purpose of or with respect to the providing or laying down by the Company of any main or pipe or works for the supply within any part of such district which is within the said limits of supply by means of such main or pipe or works. Guarantees by district councils.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and

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(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

25. All moneys raised under this Act or any other Act relating to the Company including premiums (after deducting from such moneys the expenses of and incidental to the issue of shares or stock under the provisions of any such Act) shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of such shares or stock shall not be considered as part of the capital of the Company entitled to dividend.

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Application
of moneys.

26. The Company may subject to the provisions of this Act borrow on mortgage of their undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital which at the time of borrowing has been raised under the powers of this Act But no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up.

Power to
borrow.

27. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Existing
mortgages
to have
priority.

28. Section 42 (For appointment of receiver) of the Southend Waterworks Act 1910 is by this Act repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision prior to the passing of this Act and in lieu thereof the mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

For appoint-
ment of
receiver.

A.D. 1915.

Debenture
stock.

29. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by the Companies Clauses Act 1869 and of section 34 of the Southend Waterworks Act 1879.

Debenture
stock and
mortgages
to be sold by
auction.

30. The provisions of this Act with respect to disposing of shares or stock by auction or tender and to the application of any money arising by way of premium shall mutatis mutandis apply to debenture stock issued by the Company under this Act.

Priority of
money raised
on mortgage
or debenture
stock over
other claims.

31. All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred upon the Company.

Restriction
on exercise
of borrowing
powers.

32. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Power to
Company to
apply autho-
rised moneys
to purposes
of Act.

33. The Company may apply to any of the purposes of this Act to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares stock debenture stock or mortgage under and by virtue of the Southend Waterworks Acts 1879 to 1913 and which may not be required for the purposes to which they are by any of those Acts made specially applicable.

Interim
dividends.

34. The directors of the Company may in any year without calling a meeting of the Company for the purpose declare and

pay an interim half-yearly dividend out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend shall not as the case may be exceed in any half-year one half of the amount of the maximum dividend on the ordinary stock or one half of the annual dividend assigned to the preference stock of the Company in respect of which such interim dividend is declared. A.D. 1915.

35. The directors of the Company may close the register of transfers and the register of debenture stockholders for a period not exceeding fourteen days previous to a declaration of any interim dividend or to the payment of any interest on such debenture stock as the case may be and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the registers are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or payment of any such interest. Closing of transfer books previous to declaring interim dividends &c.

36. Section 49 of the Southend Waterworks Act 1910 is hereby repealed and where the payment of more than one sum by any person is due under this Act or any other Act relating to the Company any summons or warrant issued for the purposes of any of those Acts in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Several sums in one summons.

37. Except where otherwise expressly provided all offences against this Act or any other Act relating to the Company and all penalties forfeitures costs and expenses imposed or recoverable thereunder or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

38. Section 50 of the Southend Waterworks Act 1910 is hereby repealed and proceedings for the recovery of any demand made under the authority of this Act or any other Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise Recovery of demands.

[Ch. lxvii.] *Southend Waterworks Act, 1915.* [5 & 6 Geo. 5.]

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Judges not disqualified.

39. Section 79 of the Southend Waterworks Act 1879 is hereby repealed and a judge of any court or a justice shall not be disqualified from acting in the execution of this Act or any other Act relating to the Company by reason of his being liable to any rate.

Penalties not cumulative.

40. Section 82 of the Southend Waterworks Act 1879 is hereby repealed and penalties imposed under this Act or any other Act relating to the Company and the Acts wholly or in part incorporated therewith for one and the same offence shall not be cumulative.

Costs of Act.

41. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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